

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-04

CROCUS INVESTMENTS, LLC AND CROCUS, FZE

(Complainants)

v.

**MARINE TRANSPORT LOGISTICS, INC. AND
ALEKSANDR SOLOVYEV a/k/a ROYAL FINANCE GROUP INC.**

(Respondents)

MOTION TO BE RELIEVED AS COUNSEL FOR RESPONDENTS

The undersigned attorney, Stephen H. Vengrow, hereby respectfully moves pursuant to Federal Maritime Commission Rule 23, that Stephen H. Vengrow, Eric Chang, and the law firm of Montgomery McCracken Walker & Rhoads LLP, be relieved as counsel for Respondents Marine Transport Logistics, Inc. and Aleksandr Solovyev. The reasons for this motion are as follow:

1. Respondents are currently indebted to my firm in a substantial amount, with multiple outstanding invoices in this proceeding and in matters. In this regard, we also represent Respondent Marine Transport Logistics, Inc. ("MTL") in other matters, including in cases currently pending in the U.S. District Court for the District of New Jersey; U.S. District Court for the Eastern District of New York; and before the

Commission (*MAVL Capital, et al. v. Marine Transport Logistics, Inc. and Dmitry Alper*, Docket No. 16-16).¹

2. No payments have been received from Respondents in this or any other matter for over four months, despite repeated warnings that the undersigned would seek leave to withdraw as counsel unless such payment obligations are fulfilled.

3. The amount outstanding is substantial and the continued representation of Respondents would, thus, impose an unreasonable financial burden upon Montgomery McCracken Walker & Rhoads, LLP. *See*, Rule 1.16(b)(5), (b)(6), of the American Bar Association's Model Rules of Professional Conduct ("ABA Model Rules").

4. Additionally, in the recent months, I have reached a fundamental disagreement with Respondents on how to proceed in this matter and other matters involving the representation of Respondents. Respondents have expressed their dissatisfaction with the litigation strategy taken and have been unwilling to cooperate or consider our legal advices and recommendations. Consequently, the clear communication and litigation issues that have arisen have rendered this representation to be unreasonably difficult. *See*, ABA Model Rule 1.16(b)(6).

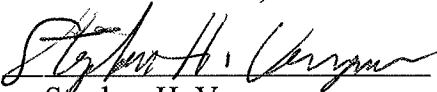
5. Respondents will not suffer material adverse effect as a result of the withdrawal. At this point, the Exceptions have been fully briefed and on February 6, 2018, the Commission extended the time for a Final Decision to May 8, 2018. *See*, 15-04 Doc. No. 58. This allows ample time for Respondents to seek substitute counsel. *See*, ABA Model Rule 1.16(b)(1).

¹ The undersigned is filing a concurrent Motion to be Relieved as Counsel, before the Commission, in *MAVL Capital, et al. v. Marine Transport Logistics, Inc. and Dmitry Alper*, Docket No. 16-16.

6. In view of the foregoing, I therefore respectfully request for myself, Eric Chang, and Montgomery McCracken Walker & Rhoads, LLP to withdraw and be relieved as attorneys in this matter.

Dated: February 22, 2018
New York, NY

Respectfully submitted,
MONTGOMERY McCracken
WALKER & RHOADS, LLP

By: 
Stephen H. Vengrow

437 Madison Ave,
New York, NY 10022
212-551-9500

CERTIFICATE OF SERVICE

The undersigned declares under penalty of perjury that the following is true and correct:

1. I am over the age of eighteen years and I am not a party to this action.
2. On February 22, 2018, I served a complete copy of Respondent's MOTION TO BE RELIEVED AS COUNSEL FOR RESPONDENTS, in Docket No. 15-04 by

E-mail and U.S. Mail to:

Original and 5 Copies to:

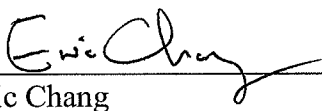
Secretary, Federal Maritime Commission
800 N. Capital St., NW.
Washington DC 20573-0001
secretary@fmc.gov

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c/o Alla Solovyeva
63 New Hook Road
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Royal Finance Group, Inc.,
c/o Aleksandr Solovyev
2820 Ocean Parkway
Brooklyn, New York 11223



Eric Chang

Dated: February 22, 2018
New York, New York